



File No.: EXP202308839

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On 07/03/2023, this Agency received three Complaint Reports sent by the GENERAL DIRECTORATE OF THE CIVIL GUARD - TÁRREGA POST (hereinafter, the complainant) for a possible breach of personal data protection regulations by BAZAR TAOURIRT, S.L., with NIF B25583782 (hereinafter, BAZAR TAOURIRT).

The reports indicate that on 02/03/2023, following an inspection carried out at the TAOURIRT, S.L. establishment/warehouse, located at ***ADDRESS.1; a video surveillance installation was observed along with the presence of only one sign, which would not meet the regulatory information requirements. Furthermore, it would not have available to the interested parties printed materials detailing the information provided for in Articles 15 to 22 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR).

SECOND: A letter was sent to BAZAR TAOURIRT indicating the obligations it had regarding data protection and video surveillance, resulting in notification on 22/04/2021, following the submission of a Report from the GENERAL DIRECTORATE OF THE CIVIL GUARD - BALAGUER COMPANY for the same facts.

THIRD: On 15/02/2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 13 of the GDPR, classified under Article 83.5.b) of the GDPR.

This initiation agreement, which was notified to BAZAR TAOURIRT in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), was received on 19/02/2024, as evidenced by the acknowledgment of receipt in the file.

FOURTH: On 07/03/2024, a letter was received in this Agency from BAZAR TAOURIRT in which it presented allegations against the initiation agreement. In these allegations, in summary, it stated that "inside our warehouse there are indeed informative signs regarding the presence of cameras." Along with the letter, it provided 2 photographs of an informative sign indicating a video surveillance area located on one side of the entrance to the warehouse.

FIFTH: On 30/09/2024, the instructor of the procedure agreed to open a period for the practice of evidence, considering incorporated the Complaint Reports sent by the GENERAL DIRECTORATE OF THE CIVIL GUARD - TÁRREGA POST and its documentation, the documents obtained and generated during the admission phase of the complaint, as well as the allegations to the initiation agreement presented by BAZAR TAOURIRT and the accompanying documentation. The respondent entity was also granted a period of ten working days to present a document proving that it maintains the rest of the information referred to in Articles 13 and 14 of the GDPR available to the affected parties.

SIXTH: On 15/01/2025, the instructor of the procedure issued a resolution proposal in which it proposed the filing of the present sanctioning procedure as it was not proven that BAZAR TAOURIRT committed an infringement of Article 13 of the GDPR.

The resolution proposal, which was notified to BAZAR TAOURIRT in accordance with the rules established in the LPACAP, was notified on 16/01/2025, as evidenced by the acknowledgment of receipt in the file.

From the actions taken in the present procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: In the reports sent by the GENERAL DIRECTORATE OF THE CIVIL GUARD - TÁRREGA POST, it is stated that on 02/03/2023, following the inspection carried out at the TAOURIRT, S.L.

establishment/warehouse, located at ***ADDRESS.1; a video surveillance installation was observed along with the presence of only one sign, which would not meet the regulatory information requirements. Furthermore, according to said reports, it would not have available to the interested parties printed materials detailing the information provided for in Articles 15 to 22 of the GDPR. No photographic report is attached.

SECOND: On 07/03/2024, in the letter of allegations to the initiation agreement of the present sanctioning procedure, BAZAR TAOURIRT provided 2 photographs of the informative sign indicating the video surveillance area located on one side of the entrance door to the warehouse/establishment. The information contained on the sign is as follows:

“VIDEO SURVEILLANCE AREA

In accordance with Regulation (EU) 2016/679 of April 27, 2016, on the processing of personal data, we inform you:

Responsible: BAZAR TAOURIRT S.L.

You can exercise your rights before: ***PHONE.1

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More information about the processing of your data: ***EMAIL.1”

LEGAL GROUNDS

I

Competence and procedure

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to that Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is therefore pertinent to analyze whether the processing of personal data (images of natural persons) carried out through the reported video surveillance system complies with the provisions established in the GDPR.

III

Claims made

This Agency has no record that BAZAR TAOURIRT has submitted a written statement of claims against the proposed resolution.

However, as already indicated in the proposed resolution, claims were submitted by BAZAR TAOURIRT against the initiation agreement of this sanctioning procedure, regarding which the following considerations were made:

BAZAR TAOURIRT claims that inside its warehouse there are indeed "informative signs regarding the presence of cameras." As evidence, it provides 2 photographs of a sign located on one of the sides of the access door to the warehouse/establishment, which contain the information indicated in the second point of the section "Proven Facts."

In this regard, this Agency wishes to point out that Article 77.5 of the LPACAP establishes that "Documents formalized by officials recognized as authorities, which, observing the corresponding legal

requirements, record the facts verified by them, shall serve as proof of these unless proven otherwise." Having stated the above, it should be noted that Article 22.4 of the LOPDGDD provides that the duty of information, as provided in Article 12 of the GDPR, shall be understood as fulfilled by placing an informative device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

In the present case, in accordance with the claims and evidence provided in the administrative file, particularly photographs of the informative sign in the video surveillance area by BAZAR TAOURIRT, it is evident that there is a sign at the entrance door of the reported entity's premises/warehouse that contains the legally required information by data protection regulations to understand that the duty of information has been fulfilled and, consequently, that there is no infringement of the GDPR. Also, from the photographic report provided by BAZAR TAOURIRT, it can be inferred that the sign is placed at a height that allows for its prompt location. This claim was taken into account by the instructor of the procedure, who issued a proposed resolution, and based on this, as well as the supporting documentation, the filing of the present sanctioning procedure was proposed.

Therefore, this claim was upheld.

IV

Presumption of innocence

The principle of the presumption of innocence prevents attributing an administrative infringement when no evidence has been obtained and verified that substantiates the facts motivating the accusation or the involvement of the alleged infringer in them. Applying the principle "in dubio pro reo" in case of doubt regarding a specific and determined fact, which obliges in any case to resolve such doubt in the most favorable manner for the interested party.

The presumption of innocence must prevail without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanctions, as the exercise of *ius puniendi* in its various manifestations is conditioned on the play of evidence and a contradictory procedure in which the parties can defend themselves.

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the own positions. In this regard, the Constitutional Court in its Judgment 76/1990, dated 26/04, considers that the right to the presumption of innocence entails: "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof lies with the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the result of the evidence presented, freely assessed by the sanctioning body, must translate into an acquittal."

The presumption of innocence applies without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanction, whether criminal or administrative (TCo 13/1981), as the exercise of the sanctioning right in any of its manifestations is conditioned by the play of evidence and a contradictory procedure in which the own positions can be defended.

According to this principle, no sanction can be imposed based on the culpability of the accused if there is no incriminating evidentiary activity that, in the assessment of the authorities or bodies called to resolve, destroys this presumption (TCo Auto 3-12-81).

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been accredited,

the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER the ARCHIVING of the current sanctioning procedure as the commission of the infringement of Article 13 of the GDPR, classified in Article 83.5 of the GDPR, has not been accredited.

SECOND: TO NOTIFY this resolution to BAZAR TAOURIRT, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route in accordance with Article 48.6 of the

LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

938-101224

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy in the position of Presidency and Deputy Presidency

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